

Pradeep Kumar Yadav v. State of U.P.

Allahabad High Court · Division Bench · 22 June 2022 · WRIT - C No. 17484 of 2022 · **Writ disposed; apply under Clause 8.1; recovery stayed six weeks.**

HEADNOTE

A writ challenging a 2 August 2021 recovery certificate for electricity dues, on the plea that no provisional assessment was served and no final assessment was known to the consumer, was disposed of without examining those contentions. The Division Bench held that the consumer had a remedy before the Executive Engineer under Clause 8.1 of the U.P. Electricity Supply Code, 2005, directed a Clause 8.1 application within two weeks, required a reasoned speaking order preferably within four weeks, and stayed coercive action on the certificate for six weeks or until that decision.

FACTUAL SUMMARY

Pradeep Kumar Yadav challenged a recovery certificate dated 2 August 2021 by which electricity dues were sought to be recovered. He contended that no provisional assessment had been served on him before any final assessment, and that he was unaware of any final assessment preceding the recovery. The writ was heard by a Division Bench of the Allahabad High Court against the State of U.P. and others, including the concerned Executive Engineer as respondent no. 4.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.1

recovery-certificate-relegated-to-clause-8.1-application

HOLDING

A writ challenging a recovery certificate for electricity dues, on the plea that no provisional assessment was served and no final assessment was known to the consumer, is disposed of by directing the consumer to apply under Clause 8.1 of the U.P. Electricity Supply Code, 2005 before the concerned Executive Engineer, who must take an expeditious decision in accordance with law by a reasoned speaking order; coercive action on the recovery certificate is stayed for a short interregnum pending that decision. ¶ 1

PRINCIPLE TAGS

theft-recovery-writ-not-entertainable-s126-clause-8.1

The Court declined to examine the recovery certificate on the writ and instead directed the consumer to apply under Clause 8.1 before the Executive Engineer for a reasoned decision in accordance with law, with a short stay of coercive recovery. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A PROVISIONAL ASSESSMENT WAS SERVED BEFORE ANY FINAL ASSESSMENT

The Court recorded the contention but did not decide it, proceeding instead under 'Be that as it may' to the Clause 8.1 remedy. ¶ 1

NOT DECIDED — WHETHER ANY FINAL ASSESSMENT PRECEDED THE RECOVERY CERTIFICATE

The petitioner claimed unawareness of any final assessment; the point was left unexamined. ¶ 1